



## CHAPTER cxxi.

An Act to confirm certain Provisional Orders of the      A.D. 1904.  
Local Government Board relating to Brighthouse Pwllheli  
Wath upon Dearne and Worthing and the North  
Staffordshire Joint Small-pox Hospital District.

[22nd July 1904.]

**W**HEREAS the Local Government Board have made the  
Provisional Orders set forth in the schedule hereto under  
the provisions of the Public Health Act 1875 :

38 & 39 Vict.  
c. 55.

And whereas it is requisite that the said Orders should be  
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty  
by and with the advice and consent of the Lords Spiritual and  
Temporal and Commons in this present Parliament assembled  
and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and  
the same are hereby confirmed and all the provisions thereof shall  
have full validity and force.      Orders in  
schedule  
confirmed.

2. This Act may be cited as the Local Government Board's  
Provisional Orders Confirmation (No. 14) Act 1904.      Short title.



A.D. 1904.

S C H E D U L E.

BOROUGH OF BRIGHOUSE.

*Brighouse  
Order.*

*Provisional Order for partially altering the Brighouse  
Corporation Act 1895.*

To the Mayor Aldermen and Burgesses of the Borough of Brighouse ; —  
And to all others whom it may concern.

WHEREAS the Borough of Brighouse (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

58 & 59 Vict.  
c. cxxviii.

And whereas the provisions of the Brighouse Corporation Act 1895 (herein-after referred to as "the Local Act") are in force in the Borough ;

28 Vict. c. 24.

And whereas by a Provisional Order dated the Sixth day of February One thousand eight hundred and sixty-five and confirmed by the Local Government Supplemental Act 1865 (which Provisional Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the powers authorities and duties of the Commissioners under the unrepealed portions of a Local Act intituled "An Act for sewerage draining " and lighting the Hamlet of Brighouse in the Township of Hipperholme " cum Brighouse in the Parish of Halifax in the West Riding of the County " of York " and herein-after referred to as "the Local Act of 1846" were transferred to the Brighouse Local Board ;

9 & 10 Vict.  
c. cccxxxv.

And whereas the powers authorities and duties so transferred to the Brighouse Local Board included the powers of purchasing taking or using by agreement any lands and of borrowing money for the purposes of the Local Act of 1846 and the Corporation are the successors of the Brighouse Local Board ;

And whereas by Section 162 of the Local Act so much of the Confirming Act as related to the Order and the Local Act of 1846 (except Sections 54 and 56 thereof) have been repealed ;

And whereas it is expedient that the Local Act be altered and amended so as to include the purposes of street construction and street improvement and the improvement of a bridge over the River Calder among the purposes



[4 EDW. 7.]                      *Local Government Board's*                      [Ch. cxxi.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

for which in the exercise of their powers under the Local Act the Corporation may acquire lands by agreement or use lands already acquired execute and maintain works and borrow money : A.D. 1904.  
Brighouse  
Order.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered and amended in the manner and to the extent herein-after set forth that is to say :— 38 & 39 Vict.  
c. 55.

Art. I.—(1) Notwithstanding anything in the Local Act the powers authorities and duties which were exerciseable by and attached to the Commissioners under the Local Act of 1846 and were transferred by the Order to the Brighouse Local Board shall be extended and as so extended shall have effect so that the Corporation as the successors of the Brighouse Local Board shall be empowered— Authorising  
land purchase  
and appropria-  
tion and works  
for street con-  
struction and  
improvement  
and widening  
of bridge over  
River Calder.

(a) to purchase such lands as may be required for the purpose of making or improving the streets or roads within the Borough known as Church Fields Road Briggate Bethel Street School Dame Green Bonegate Road Thornhill Briggs Road Laverock Lane Well Green Lane Upper Green Lane and Clifton Road and any other streets or roads within the Borough and to appropriate and use any lands already acquired for those purposes to execute works for making or improving any such street or road and to maintain all works executed in pursuance of the foregoing provision ;

(b) to execute and maintain works for widening and improving a bridge over the River Calder known as Calder Bridge and the approaches to the said bridge and otherwise as regards the said bridge and its approaches to carry into effect any agreement with the County Council of the West Riding of Yorkshire in pursuance of the Highways and Bridges Act 1891 or in pursuance of any other authority in that behalf ; and

(c) to borrow with the sanction of the Local Government Board and subject to the provisions of this Order on the security of the district fund and general district rate of the Borough such sums as are necessary for the purpose of defraying any expenditure which the Corporation may have incurred or may incur in connexion with the purchase of lands and execution of works herein-before referred to and which ought in the opinion of the Local Government Board to be spread over a term of years. Borrowing  
powers.

(2) With respect to the purchase of lands and the execution and main-tenance of works for the purposes of this Article the provisions of Sections 175 and 176 of the Public Health Act 1875 and the enactments incorporated Applied provi-  
sions of Public  
Health Act  
1875 &c.



[Ch. cxxi.]      *Local Government Board's*      [4 EDW. 7.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

A.D. 1904.      therewith except so far as the said provisions and enactments relate to the purchase and taking of lands otherwise than by agreement and the provisions of Section 308 and of Sections 327 to 329 332 and 333 of the said Act shall apply and have effect as if those provisions and enactments were herein re-enacted and in terms made applicable to the aforesaid purposes.

Local Loans Act and certain provisions of Public Health Act made applicable.

Art. II. For the purpose of raising money in the exercise of the powers of borrowing or re-borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Period for repayment of borrowed moneys.

Art. III. The moneys borrowed under this Order shall be repaid within such period as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of repayment.

Art. IV.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation maintenance and application of sinking fund.

(2) Subject to the provisions of Article V. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or



[4 EDW. 7.]      *Local Government Board's*      [Ch. cxxi.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation the Corporation being at liberty from time to time to vary and transpose such investments. A.D. 1904.  
Brighouse  
Order.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation :

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. V.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct. Increase re-  
duction or  
discontinuance  
of payments to  
sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the



[Ch. cxxi.]      *Local Government Board's*      [4 EDW. 7.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

A.D. 1904.      provisions of this Order together with the accumulations thereon (in the case  
*Brighouse*      of an accumulating sinking fund) will probably be more than sufficient to  
*Order.*      repay within the prescribed period the moneys for the repayment of which  
the sinking fund is formed the Corporation may reduce the payments to be  
made to the sinking fund either temporarily or permanently to such an extent  
as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any  
sinking fund at any time together with the accumulations thereon (in the case  
of an accumulating sinking fund) will probably be sufficient to repay the loan  
in respect of which it is formed within the prescribed period the Corporation  
may with the consent of the Board discontinue the equal annual payments to  
such sinking fund until the Board otherwise direct.

Surplus of      (5) Any surplus of any sinking fund remaining after the discharge of  
sinking fund.      the whole of the moneys for the repayment of which it was formed shall  
be applied to such purpose or purposes as the Corporation with the consent  
of the Local Government Board may determine.

Power to      Art. VI. The Corporation shall except as herein-after provided have  
re-borrow.      power to re-borrow for the purpose of paying off any moneys borrowed  
or re-borrowed under this Order which have not been repaid and are intended  
to be forthwith repaid or in respect of any moneys which have been repaid  
by the temporary application of funds at the disposal of the Corporation  
within twelve months before the re-borrowing and which at the time of the  
repayment it was intended to re-borrow :

Provided that the Corporation shall not have power to re-borrow for the  
purpose of paying off any moneys repaid by instalments or annual payments  
or by means of a sinking fund or out of moneys derived from the sale of land  
or out of any capital moneys properly applicable to the purpose of such  
repayment other than moneys borrowed for that purpose :

Provided also that any moneys re-borrowed shall be deemed to form the  
same loan as the moneys for the repayment of which the re-borrowing has  
been made and shall be repaid within the prescribed period.

Application of      Art. VII. All moneys from time to time borrowed or re-borrowed under  
borrowed      this Order shall be applied by the Corporation only for the purposes for  
moneys.      which the same are respectively authorised to be borrowed or re-borrowed  
excepting that moneys which may have been borrowed or re-borrowed in  
excess of the amount required shall be applied in such manner as the  
Corporation with the approval of the Local Government Board determine.

Receiver.      Art. VIII.—(1) Subject to the provisions of this Article any mortgagee  
of the Corporation in respect of a mortgage under this Order may enforce the  
payment of arrears of interest or of principal or of principal and interest by  
the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to  
the High Court and the Court if it thinks fit may appoint a receiver on



such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him : A.D. 1904.

*Brighouse  
Order.*

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1) The town clerk of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised under this Order and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the said town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Return as to  
provision for  
repayment of  
debt.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred Inquiries and  
expenses.



A.D. 1904. by the Board in relation to such inquiry (including such reasonable sum  
*Brighouse* not exceeding three guineas a day as the Board may determine for the services  
*Order.* of any inspector or officer of the Board engaged in such inquiry) shall be  
 paid by the Corporation and the Board may certify the amount of the costs  
 so incurred and any sum so certified and directed by the Board to be paid by  
 the Corporation shall be a debt due to the Crown from the Corporation.

Short title. Art. XI. This Order may be cited as the Brighouse Order 1904.

Given under the Seal of Office of the Local Government Board this  
 Seventh day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.  
 S. B. PROVIS Secretary.

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## NORTH STAFFORDSHIRE JOINT SMALL-POX HOSPITAL DISTRICT.

*North  
 Staffordshire  
 Order.*

### *Provisional Order for altering a Confirming Act.*

To the North Staffordshire Joint Small-Pox Hospital Board ; —

To the County Council of Stafford ; —

To the Mayor Aldermen and Burgesses of the Borough of Hanley ; —

To the Mayor Aldermen and Burgesses of each of the Boroughs of  
 Burslem Longton Newcastle-under-Lyme and Stoke-upon-Trent ; —

To the Urban District Council of each of the Urban Districts of Audley  
 Fenton Kidsgrove Leek Smallthorne Tunstall and Wolstanton  
 United ; —

To the Rural District Council of each of the Rural Districts of Cheadle  
 Leek Newcastle-under-Lyme and Stoke-upon-Trent ; —

And to all others whom it may concern.

2 EDW. 7.  
 c. lxxxvi.

WHEREAS by virtue of the North Staffordshire Joint Small-pox Hospital  
 Order 1902 which was confirmed by the Local Government Board's Pro-  
 visional Orders Confirmation (No. 14) Act 1902 (which Order and Act are  
 herein-after respectively referred to as "the Order" and "the Confirming  
 Act") the Boroughs of Hanley Burslem Longton Newcastle-under-Lyme and  
 Stoke-upon-Trent the Urban Districts of Audley Fenton Kidsgrove Leek  
 and Tunstall and the Rural Districts of Cheadle Newcastle-under-Lyme  
 Stoke-upon-Trent and Wolstanton constituted the United District called the  
 North Staffordshire Joint Small-pox Hospital District (herein-after referred  
 to as "the United District") of which the governing body is the North  
 Staffordshire Joint Small-pox Hospital Board (herein-after referred to as  
 "the Joint Board") ;



And whereas by virtue of the County of Stafford (Wolstanton &c.) Confirmation Order 1904 (herein-after referred to as "the Confirmation Order") the Rural District of Wolstanton one of the Constituent Districts referred to in the Order has ceased to exist and parts of the area comprised in that Rural District now constitute the Urban District of Wolstanton United other parts of the said area that is to say the Parishes of Chell and Milton are included in the Urban District of Smallthorne and comprise the Chell and Milton Wards of that Urban District and the remaining parts of the said area are included in the Urban Districts of Kids Grove and Tunstall two other of the Constituent Districts referred to in the Order;

A.D. 1904.

*North  
Staffordshire  
Order.*

And whereas by virtue of the Order and the Confirmation Order the Joint Board now consists of one ex-officio member and thirteen elective members elected by the several authorities mentioned in the Schedule to the Order other than the Council of that Rural District which has ceased to exist;

And whereas it is expedient that the Rural District of Leek should be included in the United District that provision should be made for the representation on the Joint Board of the Urban Districts of Smallthorne and Wolstanton United and that the Order should be altered as herein-after provided:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Confirming Act so far as it relates to the Order shall be altered as follows:—

38 & 39 Vict.  
c. 55.

Art. I. The United District shall be extended so as to include the Rural District of Leek and subject to the provisions of this Order references in the Order to the Constituent Districts shall be deemed to include the Rural District of Leek the Urban District of Wolstanton United and so much of the Urban District of Smallthorne as is comprised in the Chell and Milton Wards of that Urban District and references in the Order to the Constituent Authorities shall be deemed to include the Rural District Council of Leek and the Urban District Councils of Smallthorne and Wolstanton United.

Extension of  
United District.

Art. II. The Order shall be altered so that the Joint Board shall consist of the ex-officio member referred to in the Order and of sixteen elective members and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that authority in column 3 of the Schedule hereto:

Ex-officio and  
elective mem-  
bers of Joint  
Board.

Provided that the member to be elected by the Urban District Council of Smallthorne shall be selected from among those members of that council who represent the wards mentioned in column 1 of the Schedule hereto.



[Ch. cxxi.]      *Local Government Board's*      [4 EDW. 7.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

A.D. 1904.      Art. III. The provisions of Article X. of the Order shall apply to the first election by the Rural District Council of Leek and the Urban District Councils of Smallthorne and Wolstanton United of the elective member to represent each of those councils on the Joint Board as if the election related to the filling of a vacancy occurring on the day of the date of the Act of Parliament confirming this Order.

*North  
Staffordshire  
Order.*  
Election of  
elective mem-  
bers by district  
council.

Schedule.      Art. IV. The Order as altered by this Order shall have effect as if the Schedule to this Order were substituted for the Schedule to the Order.

Adjustment.      Art. V. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the date of the Act of Parliament confirming this Order or any expense liability or accounts arising out of incidental to connected with or affected by the inclusion of the Rural District of Leek in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the date of the said Act and the Local Government Board may in such order deal with any matters which may be dealt with by an Order or Provisional Order made under Section 304 of the Public Health Act 1875.

Power of Local  
Government  
Board to adapt  
provisions of  
Orders on ex-  
tension of  
United District.      Art. VI. If after the commencement of this Order the Urban District Council of Smallthorne apply to the Local Government Board to include in the United District so much of the Urban District of Smallthorne as is not comprised in the Chell and Milton Wards of that Urban District the Local Government Board may by order to be published as they direct make such provision as to them seems fit for the necessary alteration of the United District and for adapting the provisions of the Order and this Order to that alteration and its incidents and consequences and every order made in pursuance of this Article shall have effect as if the terms thereof were inserted in this Order.

Short titles.      Art. VII. This Order may be cited as the North Staffordshire Joint Small-pox Hospital Order 1904 and the Order and this Order may be cited together as the North Staffordshire Joint Small-pox Hospital Orders 1902 and 1904.



[4 EDW. 7.]      *Local Government Board's*      [Ch. cxxi.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

The SCHEDULE above referred to.

A.D. 1904.

*North  
Staffordshire  
Order.*

| 1.                                                                                          | 2.                                                                                             | 3.               |
|---------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|------------------|
| Name of District.                                                                           | Name of Authority.                                                                             | Elective Member. |
| The Borough of Hanley - - -                                                                 | The Mayor Aldermen and Burgesses of the Borough of Hanley acting by the Council.               | 1                |
| The Borough of Burslem - - -                                                                | The Mayor Aldermen and Burgesses of the Borough of Burslem acting by the Council.              | 1                |
| The Borough of Longton - - -                                                                | The Mayor Aldermen and Burgesses of the Borough of Longton acting by the Council.              | 1                |
| The Borough of Newcastle-under-Lyme                                                         | The Mayor Aldermen and Burgesses of the Borough of Newcastle-under-Lyme acting by the Council. | 1                |
| The Borough of Stoke-upon-Trent -                                                           | The Mayor Aldermen and Burgesses of the Borough of Stoke-upon-Trent acting by the Council.     | 1                |
| The Urban District of Audley - - -                                                          | The Urban District Council of Audley -                                                         | 1                |
| The Urban District of Fenton - - -                                                          | The Urban District Council of Fenton -                                                         | 1                |
| The Urban District of Kidsgrove - -                                                         | The Urban District Council of Kidsgrove -                                                      | 1                |
| The Urban District of Leek - - -                                                            | The Urban District Council of Leek -                                                           | 1                |
| So much of the Urban District of Smallthorne as is comprised in the Chell and Milton Wards. | The Urban District Council of Smallthorne -                                                    | 1                |
| The Urban District of Tunstall - -                                                          | The Urban District Council of Tunstall -                                                       | 1                |
| The Urban District of Wolstanton United                                                     | The Urban District Council of Wolstanton United.                                               | 1                |
| The Rural District of Cheadle - - -                                                         | The Rural District Council of Cheadle -                                                        | 1                |
| The Rural District of Leek - - -                                                            | The Rural District Council of Leek - - -                                                       | 1                |
| The Rural District of Newcastle-under-Lyme.                                                 | The Rural District Council of Newcastle-under-Lyme.                                            | 1                |
| The Rural District of Stoke-upon-Trent                                                      | The Rural District Council of Stoke-upon-Trent.                                                | 1                |

Given under the Seal of Office of the Local Government Board this  
Ninth day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.  
S. B. PROVIS Secretary.



A.D. 1904.

BOROUGH OF PWLLHELI.

*Pwllheli*  
*Order.*

*Provisional Order for altering the Pwllheli Corporation*  
*Act 1897.*

To the Mayor Aldermen and Burgesses of the Borough of Pwllheli ; —

And to all others whom it may concern.

WHEREAS the Borough of Pwllheli (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

60 & 61 Vict.  
c. ccv.

And whereas the provisions of the Pwllheli Corporation Act 1897 (herein-after referred to as "the Local Act") are in force in the Borough ;

And whereas by Section 21 of the Local Act the Corporation are empowered on lands acquired by them for the purposes of that section to extend enlarge and improve their town and market hall and to fit up furnish and equip the same and to appropriate the lands known as the Maes for market and fair purposes and to set out and adapt the same for those purposes to construct and maintain thereon such stalls sheds pens slaughter-houses buildings roads works and conveniences as they may think necessary and to regulate the market and fairs held at the market hall of the Corporation and at the Maes ;

And whereas by Section 22 of the Local Act it is enacted that from and after the signing of the certificate under Section 32 of the Markets and Fairs Clauses Act 1847 that the Maes is completed and fit for the use of persons resorting thereunto the markets and fairs held in the Borough elsewhere than at the market hall of the Corporation and at the Maes shall be discontinued ;

And whereas by Section 59 of the Local Act the Corporation were empowered to borrow the sum of four thousand pounds for the purchase of land for and for the extension improvement and fitting up of the town and market hall of the Corporation and the setting out and adapting the Maes for a horse and cattle market and fitting up of the market by that Act authorised ;

And whereas the Corporation instead of extending their then existing town and market hall on the lands referred to in Section 21 of the Local Act have acquired the lands described in the schedule to this Order and have erected thereon a new town hall and market hall and other buildings and it is expedient that such provision as is herein-after set forth should be made with respect to those lands and buildings and that the Corporation should be empowered to borrow money for market and fair purposes :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the

38 & 39 Vict.  
c. 55.



[4 EDW. 7.]                      *Local Government Board's*                      [Ch. cxxi.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

A.D. 1904.

*Pwllheli*  
*Order.*

Authorisation  
of purchase of  
land.

Art. I. The lands described in the schedule to this Order shall be deemed to have been purchased and acquired by and to be vested in the Corporation under the powers of the Local Act for the purposes of the erection and provision thereon of a town hall and market hall and other buildings accessories and conveniences as herein-after mentioned and the provisions of the Local Act as hereby altered shall apply and have effect accordingly.

Art. II.—(1) Section 21 of the Local Act shall be deemed to have had and shall have effect as if the Corporation were thereby authorised to erect provide maintain and improve a town hall market hall and other buildings upon the lands described in the schedule to this Order and to provide in connexion therewith suitable accessories and conveniences for market and fair purposes and for purposes connected with the business of the Borough the Corporation and their officers and for any other public or local purpose connected with the requirements of the Borough or its inhabitants.

Authorising  
provision of  
town and  
market hall.  
Application of  
provisions of  
Local Act.

(2) Subject to the provisions of this Order Part IV. of the Local Act and the Markets and Fairs Clauses Act 1847 as incorporated with or applied by the Local Act so far as the said Part and the said Act as so incorporated or applied relate to the market hall and markets and fairs of the Corporation and to tolls stallages and rents shall with the necessary modifications apply and have effect in relation to the market hall and other buildings accessories and conveniences referred to in subdivision (1) of this Article and to the lands described in the schedule to this Order.

Art. III. Sections 21 and 22 of the Local Act shall apply and have effect so as to provide that except in cases in which the Corporation otherwise determine the Maes shall be appropriated and used as the authorised place for the holding of markets and fairs for the sale of horses cattle and other animals and so that the market hall together with the other buildings accessories and conveniences referred to in subdivision (1) of Article II. of this Order shall forthwith be appropriated and used as the authorised place for the holding of markets and fairs for the sale of all goods articles and things other than horses cattle and animals.

Alteration of  
Sections 21 and  
22 of Local  
Act.

Art. IV. In addition to the sums which they are authorised by the Local Act to borrow the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow on the security of the borough fund and borough rate and the revenue of their markets and fairs sums not exceeding in the whole the sum of ten thousand pounds for the purposes of subdivision (1) of Article II. of this Order and for the other purposes of the Local Act in connexion with the town and market hall and markets and fairs.

Additional  
borrowing  
powers for  
purposes of  
Local Act.

Art. V. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case

Period for  
repayment of  
borrowed  
money.



[Ch. cxxi.]      *Local Government Board's*      [4 EDW. 7.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

A.D. 1904. determine and the period so determined and sanctioned shall be deemed to be the prescribed period for the purposes of the Local Act.

*Pwllheli Order.*

Application of Local Act provisions to moneys borrowed under this Order.

Art. VI. The provisions of Sections 60 to 62 and Sections 64 to 71 of the Local Act shall with the necessary modifications apply to all moneys borrowed under this Order.

Short title.

Art. VII. This Order may be cited as the Pwllheli Order 1904.

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The SCHEDULE above referred to.

All that freehold land situate at the corner of Penlan Street and Market Square in the Borough of Pwllheli and containing in the whole by admeasurement 732 yards or thereabouts and edged with red on a map which is sealed with the official seal of the Local Government Board and deposited in their office and a duplicate whereof sealed in like manner shall be deposited in the Town Hall Pwllheli within fourteen days from the date of this Order.

Given under the Seal of Office of the Local Government Board this  
Ninth day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.  
S. B. PROVIS Secretary.

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URBAN DISTRICT OF WATH UPON DEARNE.

*Wath upon Dearne Order.*

*Provisional Order for altering the Wath-upon-Dearne  
Urban District Council (Water) Act 1898.*

To the Urban District Council of Wath upon Dearne ; —

And to all others whom it may concern.

61 & 62 Vict.  
c. cccxxviii.

WHEREAS the Urban District Council of Wath upon Dearne (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Wath upon Dearne (herein-after referred to as "the District") and the unrepealed provisions of the Wath-upon-Dearne Urban District Council (Water) Act 1898 (herein-after referred to as "the Local Act") are in force in the District ;

And whereas by Section 21 of the Local Act it was provided that the limits of that Act for the supply of water by the Council should be the district and that portion of the Parish of Brampton Bierlow which was in that section defined ;

And whereas by Section 39 of the Local Act the Council were empowered to borrow certain moneys therein mentioned and with the approval of the Local Government Board such further moneys as the Council might require for any of the purposes of that Act or for the extension and improvement of their waterworks or otherwise in relation to their water undertaking ;



[4 EDW. 7.]                      *Local Government Board's*                      [Ch. cxxi.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

And whereas by Section 4 of the Dearne Valley Waterworks Act 1880 (herein-after referred to as "the Act of 1880") the Parish of Adwick upon Dearne is comprised in the limits within which the Dearne Valley Waterworks Company (herein-after referred to as "the Company") are by that Act authorised to supply water but the Company have agreed that the Local Act shall be altered so as to include the said parish within the limits of the Local Act for the supply of water by the Council :

A.D. 1904.  
*Wath upon Dearne Order.*  
 43 & 44 Vict.  
 c. cxvi.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered as follows that is to say :—

38 & 39 Vict.  
 c. 55.

Art. I. Notwithstanding the provisions of Section 4 of the Act of 1880 Section 21 of the Local Act shall be altered and shall have effect so as to include the Parish of Adwick upon Dearne in the limits within which the Council are authorised by the Local Act to supply water and the Council may supply water within that parish upon such terms as have been agreed upon between the Council and the Company and any expenses incurred by the Council in carrying out the terms so agreed upon shall be deemed to be expenses to the payment whereof the revenue of their water undertaking is applicable in pursuance of Section 53 of the Local Act or expenses on capital account which may be defrayed out of moneys borrowed with the approval of the Local Government Board under Section 39 of the Local Act.

Alteration of  
 Section 21 of  
 Local Act.  
 Extension of  
 limits of supply  
 of Council.

Art. II. This Order may be cited as the Wath upon Dearne Order 1904.

Short title.

Given under the Seal of Office of the Local Government Board this  
 Seventh day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.  
 S. B. PROVIS Secretary.

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BOROUGH OF WORTHING.

*Provisional Order for altering the West Worthing Improvement  
 Act 1865 and a Confirming Act.*

*Worthing  
 Order.*

To the Mayor Aldermen and Burgesses of the Borough of Worthing ;—

And to all others whom it may concern.

WHEREAS the Borough of Worthing (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

And whereas there are in force in the Borough the unrepealed provisions of the West Worthing Improvement Act 1865 (herein-after referred to as

28 Vict.  
 c. xxvii.



A.D. 1904.

**Working  
Order.**

47 & 48 Vict.  
c. cxxii.

(1) An Order dated the Twenty-seventh day of May One thousand eight hundred and eighty-four and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1884; and

56 & 57 Vict.  
c. cxxxix.

(2) An Order dated the Eighteenth day of May One thousand eight hundred and ninety-three and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1893 (herein-after referred to as "the Confirming Act");

each of which Orders is herein-after referred to as the Order of the year in which it was made;

And whereas by Section 40 of the Local Act as altered by the Order of 1884 the Corporation are empowered to make erect and maintain benches seats and shelters along the sea front ;

31 & 32 Viet.  
c. clii.

And whereas by a Provisional Order made by a Secretary of State dated the Eighth day of June One thousand eight hundred and sixty-eight and confirmed by the Local Government Act 1868 (No. 6) certain Local Acts were partially repealed and altered and the unrepealed provisions of that Order are now in force in the Borough and by virtue of those provisions the Corporation are now empowered to extend enlarge alter and protect from the sea the public walk or esplanade (herein-after referred to as "the esplanade");

And whereas by Article III. of the Order of 1893 the Corporation are empowered to make byelaws for amongst other things fixing and regulating the situation of pleasure boats and vessels upon the beach and foreshore and for prescribing the precautions to be taken for securing the safety of persons hiring any pleasure boat or vessel :

38 & 39 Vict.  
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act so far as it relates to the Order of 1893 shall be altered so as to provide as follows that is to say :—

Provision of  
shelters seats  
and chairs.  
Charges and  
byelaws.

Art. I.—(1) Section 40 of the Local Act shall be further altered and shall apply and have effect so as to empower the Corporation to provide and maintain shelters seats and chairs on the esplanade for the use of the public to charge a reasonable sum for the use of chairs so provided and to make byelaws for regulating the use of the said shelters seats and chairs and for preventing injury or damage thereto.

(2) The provisions of Sections 182 to 185 of the Public Health Act 1875 with respect to byelaws except such of those provisions as relate exclusively to byelaws of a rural sanitary authority shall apply to the byelaws authorised to be made in pursuance of this Article as if the said provisions except as



aforesaid were herein re-enacted and in terms made applicable to the said byelaws. A.D. 1904.

*Worthing  
Order.*

Art. II.—(1) The Corporation may grant upon such terms for such period and subject to such conditions as they think fit a licence (herein-after referred to as a "proprietor's licence") enabling the proprietor of a pleasure boat or pleasure vessel to let the said pleasure boat or pleasure vessel for hire or for use in carrying passengers for hire or a licence (herein-after referred to as a "boatman's licence") enabling a person to act as a boatman or in charge of or in the navigation of a pleasure boat or pleasure vessel or as an assistant to the boatman or person acting in charge of or in the navigation of a pleasure boat or pleasure vessel.

Licensing of  
proprietors and  
boatmen of  
pleasure boats  
&c.

(2) A fee not exceeding one shilling shall be charged and paid in respect of every proprietor's licence and every boatman's licence.

(3) Every proprietor's licence shall be granted and shall operate and have effect in respect only of the pleasure boat or pleasure vessel which is named or described in the proprietor's licence.

(4) A proprietor's licence or a boatman's licence may be suspended or revoked by the Corporation whenever they deem the suspension or revocation to be necessary or desirable in the interests of the public. Provided that the fact that a proprietor's licence or a boatman's licence is granted subject to the condition that the licence may be suspended or revoked as aforesaid shall be plainly set forth in the licence itself.

Art. III.—(1) A person shall not let a pleasure boat or pleasure vessel for hire or for hire carry any passenger or cause or suffer any passenger to be carried in a pleasure boat or pleasure vessel unless a proprietor's licence is for the time being in force in respect of the pleasure boat or pleasure vessel.

Prohibition of  
unlicensed  
boats and boat-  
men.

(2) A person shall not for hire or gain act as a boatman or in charge of or in the navigation of a pleasure boat or pleasure vessel or as an assistant to the boatman or person acting in charge of or in the navigation of a pleasure boat or pleasure vessel when the pleasure boat or pleasure vessel is let for hire or is used for hire to carry any passenger unless the person firstly herein-before mentioned holds a boatman's licence which is for the time being in force.

(3) Every person who acts in contravention of this Article shall for each offence be liable on summary conviction to a penalty not exceeding five pounds.

Art. IV. The Corporation before proceeding to suspend or revoke a proprietor's licence or a boatman's licence shall afford the holder thereof an opportunity of being heard in opposition to the suspension or revocation of the licence and for that purpose shall cause notice in writing of the time and place of the meeting of the Corporation or of any committee of the Corporation at which the question of the suspension or revocation of the licence will be determined to be given to the said holder who may accordingly attend and shall be heard in the matter aforesaid.

Hearing of  
holders before  
suspension or  
revocation of  
licenses.



[Ch. cxxi.]      *Local Government Board's*      [4 Edw. 7.]  
*Provisional Orders Confirmation (No. 14) Act, 1904.*

A.D. 1904.

*Worthing*  
*Order.*  
Appeals.

Art. V.—(1) A person who deems himself aggrieved by the grant refusal suspension or revocation of a licence under this Order may within fourteen days after the said grant refusal suspension or revocation appeal to a petty sessional court having jurisdiction within the Borough.

(2) The person deeming himself aggrieved as aforesaid shall give seven days' written notice of his intention to appeal and the grounds of appeal to the town clerk of the Borough.

(3) The petty sessional court may make such order in the matter as the court may think just and may award costs to the successful party and any costs so awarded shall be recoverable summarily as a civil debt.

Saving of  
powers and  
byelaws under  
Public Health  
Acts.

Art. VI. Nothing in this Order shall prejudicially affect the exercise by the Corporation of any powers on the operation of any licence or of any byelaws under so much of Section 172 of the Public Health Act 1875 or of any Act amending that Act as relates to pleasure boats and vessels the proprietors thereof and the boatmen and other persons in charge and any such powers may be exercised any such licence may be granted and any such byelaws may be made confirmed and enforced as if this Order had not been made.

Short titles.

Art. VII. The Order of 1884 may be cited as the Worthing Order 1884 the Order of 1893 may be cited as the Worthing Order 1893 and this Order may be cited as the Worthing Order 1904.

Given under the Seal of Office of the Local Government Board this  
Fourth day of May One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.  
S. B. PROVIS Secretary.

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